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13/841,902	03/15/2013	Ned L. Jensen	3642-001.CIP	6122
20551 7590 01/06/2015 THORPE NORTH & WESTERN, LLP. P.O. Box 1219 SANDY, UT 84091-1219			EXAMINER HAUHHATHAN, MINA	
			ART UNIT 1616	PAPER NUMBER
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Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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Office Action Summary	Application No. 13/841,902	Applicant(s) JENSEN ET AL.	
	Examiner Mina Haghighatian	Art Unit 1616	AIA (First Inventor to File) Status No

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 06/27/13.
☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on ____.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

- 5) ☒ Claim(s) 1-26 is/are pending in the application.
 5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-26 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
 Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
 Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

- a) ☐ All b) ☐ Some** c) ☐ None of the:
1. ☐ Certified copies of the priority documents have been received.
2. ☐ Certified copies of the priority documents have been received in Application No. ____.
3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- 1) ☒ Notice of References Cited (PTO-892)
- 2) ☒ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b)
 Paper No(s)/Mail Date 11/13 & 10/14
- 3) ☐ Interview Summary (PTO-413)
 Paper No(s)/Mail Date: ____
- 4) ☐ Other: ____

The present application is being examined under the pre-AIA first to invent provisions.

DETAILED ACTION

This Application is a CIP of Application No. 13/113,226 filed on 05/23/2011, which is now abandoned. **Claims 1-26** have been presented for examination on the merits.

Information Disclosure Statement

The information disclosure statement (IDS) submitted on 11/06/2013 has been considered by the examiner. Additionally an IDS filed under "Third Party Preissuance Submission" on 10/17/14 has been considered, initialed and attached.

Claim Rejections - 35 USC § 112

The following is a quotation of the first paragraph of 35 U.S.C. **112(a)**:

(a) IN GENERAL.—The specification shall contain a written description of the invention, and of the manner and process of making and using it, in such full, clear, concise, and exact terms as to enable any person skilled in the art to which it pertains, or with which it is most nearly connected, to make and use the same, and shall set forth the best mode contemplated by the inventor or joint inventor of carrying out the invention.

The following is a quotation of the first paragraph of pre-AIA 35 U.S.C. 112:

The specification shall contain a written description of the invention, and of the manner and process of making and using it, in such full, clear, concise, and exact terms as to enable any person skilled in the art to which it pertains, or with which it is most nearly connected, to make and use the same, and shall set forth the best mode contemplated by the inventor of carrying out his invention.

Claims 1-19 are rejected under 35 U.S.C. 112(a) or 35 U.S.C. 112 (pre-AIA), first paragraph, because the specification, while being enabling for treating certain skin

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irritations by a composition comprising salicylic acid, trona and a homeopathic agent, does not reasonably provide enablement for treating other ailments with the said composition. The specification does not enable any person skilled in the art to which it pertains, or with which it is most nearly connected, to make and use the invention commensurate in scope with these claims.

To be enabling, the specification of a patent must teach those skilled in the art how to make and use the full scope of the claimed invention without undue experimentation. In *Genentech Inc. v. Novo Nordisk* 108 F.3d 1361, 1365, 42 USPQ2d 1001, 1004 (Fed. Cir. 1997); *In re Wright* 999 F.2d 1557, 1561, 27 USPQ2d 1510, 1513 (Fed. Cir. 1993). See also *Amgen Inc. v. Chugai Pharm. Co.*, 927 F.2d 1200, 1212, 18 USPQ2d 1016, 1026 (Fed. Cir. 1991); *In re Fisher* 427 F.2d 833, 839, 166 USPQ 18, 24 (CCPA 1970) and *In re Wands* 858 F.2d 731, 737, 8 USPQ2d 1400, 1404 (Fed. Cir. 1988).

There are many factors to be considered when determining whether there is sufficient evidence to support a determination that a disclosure does not satisfy the enablement requirement and whether any necessary experimentation is "*undue*". See *In re Wands*, 858 F.2d 731, 737, 8 USPQ 2d 1400, 1404 (Fed. Cir. 1998). The court set forth the eight factors to consider when assessing if a disclosure would require undue experimentation. Citing *Ex parte Forman*, 230 USPQ 546, the court recited eight factors.

These factors include, but are not limited to:

- 1) *The breadth of the claims,*
- 2) *The nature of the invention,*

- 3) *The state of the prior art,*
- 4) *The level of one of ordinary skill,*
- 5) *The level of predictability in the art,*
- 6) *The amount of direction provided by the inventor,*
- 7) *The existence of working examples,*
- 8) *The quantity of experimentation needed to make or use the invention based on the content of the disclosure.*

(1 and 2) *The breadth of the claims and the nature of the invention:* The claims are very broad. The claims are drawn to a composition for treating skin irritations and other ailments and a method of treating skin irritations and other ailments by administering topically or orally an effective amount of a composition comprising salicylic acid, trona or its salt and a homeopathic agent.

(3 and 5) *The state of the prior art and the level of predictability in the art:* The art teaches methods of treating skin irritations or oral cavity by topical or oral administration of the listed agents. It is known in the art that salicylic acid has multiple effects on the skin or used orally as an analgesic/antipuritic agent. It is also known in the art that botanical agents (homeopathic agents) have specific benefits both topically and orally. However it is also **known that specific** homeopathic agents are beneficial to specific disorders and that **many ailments such** as cancers, neurological disorders, cystic fibrosis, respiratory infections, **etc, cannot** be treated with the disclosed

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composition. Accordingly, the level of predictability of "all" ailments being treatable with the said composition/method, in the art is very low.

(6 and 7) The amount of direction provided by the inventors and the existence of working examples: Applicants have provided in the specification disclosure regarding treating skin irritations and internal ailments such as headaches, stomach ache by topical or oral administration of the said composition. In fact specification discloses "[0022] As used herein, the term "skin irritation" may refer to any skin inflammation or itchiness causing discomfort to the patient. The skin irritation may be caused by burns, such as sunburn, heat burn, poisonous plants, allergens, insect bites, or puberty (acne); and wounds, such as lacerations. [0023] As used herein the term "internal ailment" may refer to any internal affliction including, but not limited to, headache, stomach ache, acid reflux, backache, skin rashes, arthritis, neuralgia, and joint pain, for which oral administration is indicated". In view of the various different ailments known (and not yet known) which may or may not be treatable with the said composition, further testing would be necessary to use the invention as broadly as claimed.

(8) The quantity of experimentation needed to make or use the invention bases on the content of the disclosure: The quantity of experimentation needed to make and use the invention based on the contents of the disclosure and the unpredictability asserted by the Applicant, is very high and not enabled by the specification.

Conclusion

For the forgoing reasons, the specification is not enabling for the scope of the claims.

In view of the unpredictability in the art, the lack of working examples, the excessive breadth of the claims and lack of guidance in the specification, it would require undue experimentation on the part of the person of skill in the art to practice the full scope of the invention.

The following is a quotation of 35 U.S.C. **112(b)**:

(b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. **112 (pre-AIA), second paragraph**:

The specification shall conclude with one or more claims **particularly pointing out and distinctly** claiming the subject matter which the applicant regards as his invention.

Claims 1-26 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor, or for pre-AIA the applicant regards as the invention.

Claims 1-26 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being **incomplete for omitting essential elements**, such omission amounting to a gap between the elements. See MPEP § 2172.01. The omitted elements are: 1) the specific skin irritations; 2) other ailments. The claims do not recite what skin ailments or what type of skin irritation is being treated or what homeopathic agent is suitable for the said skin irritation.

Claims 1-3, 6-12, 15-22 and 25-26 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being incomplete for **omitting essential**

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elements, such omission amounting to a gap between the elements. See MPEP

§ 2172.01. The omitted elements are the specific homeopathic ingredients. The claims do not recite what is meant by a homeopathic ingredient that can be/should be added.

Claims 3, 12 and 22 are indefinite because it is not disclosed what the basis for the concentration ranges is. For example, are the said concentration ranges based on the total weight of the formulation or else?

Claims 10 and 19 are vague and indefinite because they recite that the composition is “topically or orally administering to an affected area”. It is not clear how the composition is **orally administered to the affected** area, if the area is “skin”.

Claim 6 is indefinite for reciting an improper Markush grouping. Markush species of claim 6 **are not alternatively useable species because: (1) the species** do not share a “single structural similarity,” or **(2) the species do not share a common use**. There is no structural similarity or commonality between skin care/cosmetic formulations, food preservatives and **detergents such as laundry detergents**. Furthermore, it is noted that claim 6 depends on claim 1 which recites a formulation for the treatment of skin irritations. It is not **clear why anyone would use a laundry detergent** for treating skin or how one would use a food preservative for treating skin irritation, or use a capsule or pill on their skin. Additionally it is not clear why a liquid laundry detergent would comprise salicylic acid.

Claim 6 is also indefinite for containing duplications of bases. For example, food preservatives (and food preservative agents) appears 4 times, face cleaners appears 3 times, in addition to facial cleaning creams, which is a species of facial cleaners. Also

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liquid detergent is a species of detergents. And plant food additive is a species of food additives.

Claims 4-5, 13-14 and 23-24 are vague for capitalizing chemical and generic names. Only trade names and abbreviations may be capitalized. Botanical names in Latin should be in italic.

Claims 4, 13 and 23 are indefinite for reciting "silver and salts". It is not clear what "salts" are referring to. This appears to be a typographical error and is interpreted as "silver and salts thereof".

Corrections are required.

NOTE: Depending claims include the term "Claim" which is capitalized. It should be rewritten in lower case.

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

(a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102 of this title, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negated by the manner in which the invention was made.

The factual inquiries set forth in *Graham v. John Deere Co.*, 383 U.S. 1, 148 USPQ 459 (1966), that are applied for establishing a background for determining obviousness under 35 U.S.C. 103(a) are summarized as follows:

1. Determining the scope and contents of the prior art.

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2. Ascertaining the differences between the prior art and the claims at issue.
3. Resolving the level of ordinary skill in the pertinent art.
4. Considering objective evidence present in the application indicating obviousness or nonobviousness.

This application currently names joint inventors. In considering patentability of the claims under 35 U.S.C. 103(a), the examiner presumes that the subject matter of the various claims was commonly owned at the time any inventions covered therein were made absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and invention dates of each claim that was not commonly owned at the time a later invention was made in order for the examiner to consider the applicability of 35 U.S.C. 103(c) and potential 35 U.S.C. 102(e), (f) or (g) prior art under 35 U.S.C. 103(a).

Claims 1-19 are rejected under 35 U.S.C. 103(a) as being unpatentable over De Rijk (US 20090214628).

De Rijk teach methods and compositions for treatment of skin. The compositions may be in any form such as **cream, powder, liquid, toothpaste, gels, sticks, sprays, aerosols, lotions, soaps, facial cleansers, shampoo**, etc (see [0025], [0038], [0160]-[0162]). Formulations for **oral administration** include toothpaste, **mouth sprays, lozenges**, tooth gels, etc (see [0014] and [0015]). It is also disclosed that the formulations may be incorporated into a formulation comprising a carrier suitable for **oral delivery** (see [0020], [0021] and [0045]).

The compositions may contain a **carbonate** such as sodium carbonate, potassium carbonate, sodium bicarbonate, potassium bicarbonate, and sodium

sesquicarbonate. The said carbonate is incorporated in the final composition in an amount of **0.01%-4.0%, or 0.1-3.0%**, based on the total amount of the composition. One suitable carbonate is a hydrated carbonate such as **trona**. The compound may be in its **salt form** (see [0053]-[0057]).

The composition may also contain an active agent such as **salicylic acid**, **sulphur**, etc, and combinations thereof. The said agent is added at a concentration of from **0.01 to 10%** by weight based on the total weight of the formulation (see [0085]). Formulations comprising **salicylic acid** include anti-microbial, acne medications, wart removers, etc (see [0025], [0027], [0133], [0150], [0151], [0156]).

Other suitable agents include **zinc** pyrinthione or zinc oxide (see [0132]). **Copper** is a suitable pigmenting agent (see [0181]) and an anti-microbial agent (see [0391]). **Silver** is also a suitable antimicrobial agent (see [0242]).

In one embodiment, De Rijk discloses a cosmetic formulation comprises an active agent for **treating skin such as** hydroxyl acid (e.g. **salicylic acid**) and botanicals such as **aloe vera, which may be** included in the composition at a concentration of from about **0.001% to about 20% by weight** of the total weight of the composition (see [0026] and [0027]).

Homeopathic beneficial agents that can be incorporated into the disclosed formulations include ***aloe barbadensis***, ***eucalyptus*** ([0099]), horse chestnut extract (also known as ***aesculus hippocastum***) ([0101]), clove oil, ***salvia officinalis*** ([0128] and [0130]), **aloe**, **clove**, **sweet orange**, etc ([0142]), citric acid (i.e. **lemon or lime**),



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aloe and **bitter orange** ([0148]), **calendula**, **arnica**, **salvia** ([0150]), lemongrass oil, clove oil, **thyme oil**, **tea tree oil**, **silver** ([0242]).

Another preferred embodiment of the disclosure is **a method of treating acne and reducing the signs of aging**, i.e. wrinkles, fine lines, etc, comprising topically applying the described formulations to the skin of a human or animal at a desired area (See 0147]).

De Rijk does not anticipate the claimed formulations because De Rijk does not exemplify a formulation comprising all claimed ingredients. However De Rijk provides sufficient teaching to one of ordinary skill in the art to make and use the invention as claimed.

It would have been obvious to one of ordinary skill in the art at the time the invention was made to have selected the specific agents as claimed from within the disclosure of De Rijk with reasonable expectation of success. It has been held that “[w]hen an application simply arranges old elements with each performing the same function it had been known to perform and yields no more than one would expect from such an arrangement, the combination is obvious”. KSR v. Teleflex, 127 S.Ct. 1727, 1740 (2007)(quoting Sakraida v. A.G. Pro, 425 U.S. 273, 282 (1976)). “[W]hen the question is whether a patent application claiming the combination of elements of prior art is obvious”, the relevant question is “whether the improvement is more than the predictable use of prior art elements according to their established functions.” (Id.). Addressing the issue of obviousness, the Supreme Court noted that the analysis under

35 USC 103 “need not seek out precise teachings directed to the specific subject matter of the challenged claim, for a court can take account of the inferences and creative steps that a person of ordinary skill in the art would employ.” KSR v. Teleflex, 127 S.Ct. 1727, 1741 (2007). The Court emphasized that “[a] person of ordinary skill is... a person of ordinary creativity, not an automaton.” Id. at 1742. Consistent with this reasoning, it would have been obvious to have selected various combinations of various disclosed ingredients from within a prior art disclosure, to arrive at a product / process “yielding no more than one would expect from such an arrangement”.

Claims 1-6, 9-15 and 17-18 are rejected under 35 U.S.C. 103(a) as being unpatentable over LeCompte (US 20040052757) in view of De Rijk (US 20090214628).

LeCompte teach dermal abrasion facial peel comprising sodium bicarbonate and aloe vera (See Abstract). The compositions include sodium bicarbonate crystals, cornstarch, aloe vera and water. The **sodium bicarbonate** crystals are an antimicrobial agent that removes acne causing bacteria laden skin oil. The **aloe vera** reduces soreness and inflammation to the skin and is known natural healing agent (See [0014]). The said compositions comprise 25-49% by weight of sodium bicarbonate and **1-25% by weight of aloe vera** (see claims 1 and 4).

LeCompte lacks disclosure on the compositions comprising salicylic acid. However this is known on the art as shown by De Rijk.

De Rijk's teachings are delineated above and incorporated herein. De Rijk teach that preferred anti-acne agents include antibiotics and **salicylic acid** (See [0151]). Suitable anti-acne agents include from **0.01-10%** by weight (See [0152]).

It would have been obvious to one of ordinary skill in the art at the time the invention was made to have combined the teachings of De Rijk and LeCompte to arrive at the claimed inventions. It would have been obvious to do so because LeCompte teach a composition for treating acne comprising sodium bicarbonate (trona salt), an anti-microbial agent and aloe vera, a healing agent. De Rijk teach compositions for treating skin ailments and irritations, such as acne and disclose that salicylic acid is a suitable anti-acne agent, especially in combination with an antibiotic. As such it would have been obvious to one of ordinary skill in the art to have incorporated salicylic acid as taught by De Rijk into the compositions of LeCompte for better treatment of acne.

It has been held that "It would be prima facie obvious to combine two methods each of which is taught by the prior art to be useful for the same purpose in order to form a resultant method that is to be used for the very same purpose; the idea of combining them flows logically from their having been individually taught in prior art." *In re Kerkhoven*, 205 USPQ 1069 (C.C.P.A. 1980).

While LeCompte discloses a concentration range outside of the claimed range, it is considered to be an optimization of range which is not a patentable distinction. Where the general conditions of a claim are disclosed in the prior art, it is not inventive to



discover the optimum or workable ranges by routine experimentation. *In re Aller*, 220 F.

2d 454, 105 USPQ 233 (CCPA 1955).

✓ **Claims 1-19 are rejected under 35 U.S.C. 103(a) as being unpatentable over Basavaraja (Published 2005 and filed by 3rd party).**

Basavaraja discloses a homeopathic remedy for ailments including colic, abdominal cramps, stone in urinary bladder, etc (See page 11 of the translated version).

The ingredients of plant origin are dried and made into powder and mixed with minerals. It is disclosed that the usefulness of Sodium Chloride (homeopathic ingredient), Sesamum indicum Linn. (source of **salicylic acid**), **Sodium bicarbonate (trona salt)**, Piper nigrum Linn. (source of **salicylic acid**), Piper longum Linn. (source of salicylic acid), Mercury (homeopathic ingredient), Sulphur (homeopathic ingredient), Copper (homeopathic ingredient), Citrus limon (Linn.) Burn.f. (homeopathic ingredient), Commiphora wightii Bhandari Syn:C.mukul (homeopathic ingredient), Citrus sinensis (Linn.) Osbeck (homeopathic ingredient and source of salicylic acid), Vitis vinifera Linn.(source of salicylic acid), Foeniculum vulgare Mill. (source of salicylic acid) Syzygium aromaticum (Linn.) (source of salicylic acid), Commiphora myrrha (Myrrh) have been used as suppuration of **wound/ripening of wound** and for the treatment of **colic**, intercostal neuralgia, colic due to indigestion, hyperacidity, **bodyache**, dyspepsia/loss of appetite, chest burning sensation through **oral administration** is well

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known in the Indian System of Medicine. The amounts of each ingredient is disclosed on page 10 (See pages 10 and 4 of the document filed).

Basavaraja does not anticipate the claimed formulations because Basavaraja does not exemplify a formulation comprising all claimed ingredients. However Basavaraja provides sufficient teaching to one of ordinary skill in the art to make and use the invention as claimed.

It would have been obvious to one of ordinary skill in the art at the time the invention was made to have selected the specific agents as claimed from within the disclosure of Basavaraja with reasonable expectation of success. It has been held that “[w]hen an application simply arranges old elements with each performing the same function it had been known to perform and yields no more than one would expect from such an arrangement, the combination is obvious”. KSR v. Teleflex, 127 S.Ct. 1727, 1740 (2007)(quoting Sakraida v. A.G. Pro, 425 U.S. 273, 282 (1976)). “[W]hen the question is whether a patent application claiming the combination of elements of prior art is obvious”, the relevant question is “whether the improvement is more than the predictable use of prior art elements according to their established functions.” (Id.). Addressing the issue of obviousness, the Supreme Court noted that the analysis under 35 USC 103 “need not seek out precise teachings directed to the specific subject matter of the challenged claim, for a court can take account of the inferences and creative steps that a person of ordinary skill in the art would employ.” KSR v. Teleflex, 127 S.Ct. 1727, 1741 (2007). The Court emphasized that “[a] person of ordinary skill is... a person

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of ordinary creativity, not an automaton.” Id. at 1742. Consistent with this reasoning, it would have been obvious to have selected various combinations of various disclosed ingredients from within a prior art disclosure, to arrive at a product / process “yielding no more than one would expect from such an arrangement”.

While the concentration ranges are not disclosed in percentages and may not be the same as those claimed, it is noted that differences in concentration ranges are not support for patentability. Where the general conditions of a claim are disclosed in the prior art, it is not inventive to discover the optimum or workable ranges by routine experimentation. *In re Aller*, 220 F. 2d 454, 105 USPQ 233 (CCPA 1955).

Claims 20-26 are rejected under 35 U.S.C. 103(a) as being unpatentable over Finnegan et al (US 7,189,666) in view of De Rijk (US 20090214628).

Finnegan et al teach a method and means for **enhancing the inner environment** of a package containing perishable (see abstract). It is disclosed that the said method includes a combination of a carboxylic acid and a hydrogen carbonate. Carboxylic acids may be a combination of acids. Suitable carboxylic acids include **salicylic acids** (see col. 8) and **citric acid** (i.e. **lemon or lime**) (see col. 6, lines 19 and 58). Suitable **carbonate** is a **sodium bicarbonate** and the two components (acid:carbonate) are present at a ratio of from about 1:1 to about 1:100 (see col. 9, lines 6-26).

Finnegan et al also disclose that the said carboxylic acid and hydrogen carbonate base CO₂ generating material may be used by formulating the CO₂

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generating material into a **powdery** or **granular form together with** one or more of various additives, **antibacterial agents**, anti-mold agents and the like as needed or by having them borne on a suitable carrier (see col. 9, lines 45-52). To retain the freshness of perishable merchandise, it is necessary to make the perishable merchandise and the said CO₂ generating material exist together in the same atmosphere (see col. 10, lines 20-23). Applications include **Floral, Bakery, Deli, Meat, Seafood, Produce**, and Consumer uses (see col. 11, lines 17-19).

Finnegan et al lacks disclosure on the specific carbonate being trona and the specific the specific homeopathic ingredients of claim 24. However this deficiency is cured by De Rijk.

De Rijk's teachings are delineated above and incorporated herein, teach compositions comprising salicylic acid, carbonates and homeopathic agents. It is disclosed that trona is a suitable carbonate and homeopathic agents (beneficial agents) include thyme, aloe vera, *calendula*, **salvia** and **horse chestnut (*ascalus hippocastum*)** copper and silver are suitable antimicrobial agents.

It would have been obvious to one of ordinary skill in the art at the time the invention was made given the teachings of Finnegan et al on a method of maintaining freshness of perishable goods, comprising **exposing the immediate environment** to a combination of a carboxylic acid such as **salicylic acid, a carbonate and antimicrobial agents**, to have looked in the art for **specific carbonates and antimicrobial agents** as

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taught by De Rijk with a reasonable expectation of success. De Rijk specifically discloses that thyme oil is an effective antimicrobial agent. The prior art contains all the claimed limitations, with the only difference being the lack of actual combination in a single prior art reference. One of ordinary skill could have combined the elements by known methods, and that in combination, each element performs the same function as it does separately.

Additionally, the claims would have been obvious because a person of ordinary skill has good reasons to pursue the known options within his or her technical grasp. If this leads to the anticipated success, it is likely the product not of innovation but of ordinary skill and common sense.

Claims 20-26 are rejected under 35 U.S.C. 103(a) as being unpatentable over Finnegan et al (US 7,189,666) in view of Brander et al (US 20080175965 or 7,863,350) (We refer to the citing in the patent).

Finnegan et al's teachings are delineated above and incorporated herein. Finnegan et al teach a method **and means for enhancing the inner environment** of a package containing perishable. Finnegan et al lacks disclosure on the specific homeopathic ingredients of claim 24. However this deficiency is cured by Brander et al.

Brander et al teach food preservation compositions and methods. The compositions are effective in reducing or preventing microbial growth in food storage articles (see abstract and col. 1, lines 55-62). It is disclosed that the said compositions

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may contain an adsorbent, including inorganic buffers such as sodium carbonate and antimicrobial agents such as **sage** (i.e. *salvia officinalis*), **thyme**, lemon oil, **eucalyptus** and other botanical extracts (see col. 5, lines 17-20 and 39-58). The said antimicrobial agents may be used individually or in combination (see col. 5, lines 60-63).

It would have been obvious to one of ordinary skill in the art at the time the invention was made given the teachings of Finnegan et al on a method of maintaining freshness of perishable goods, comprising exposing the immediate environment to a combination of a carboxylic acid such as salicylic acid, a carbonate and antimicrobial agents, to have looked in the art for specific antimicrobial agents as taught by Brander et al with a **reasonable expectation** of success. Brander et al specifically disclose that suitable antimicrobial agents needed to effectively reduce or prevent microbial growth in food storage includes thyme, sage, eucalyptus, etc. The prior art contains all the claimed limitations, with the only difference being the lack of actual combination in a single prior art reference. One of ordinary skill could have combined the elements by known methods, and that in combination, each element performs the same function as it does separately. Additionally, the claims would have been obvious because a person of ordinary skill has good reasons to pursue the known options within his or her technical grasp. If this leads to the anticipated success, it is likely the product not of innovation but of ordinary skill and common sense.

In conclusion: **Claims 1-26 are rejected.**

Any inquiry concerning this communication or earlier communications from the examiner should be directed to MINA HAGHIGHATIAN whose telephone number is (571)272-0615. The examiner can normally be reached on core office hours.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Sue Liu can be reached on 571-272-5539. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

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/Mina Haghighatian/

Mina Haghighatian
Primary Examiner
Art Unit 1616

Search Notes 	Application/Control No. 13841902	Applicant(s)/Patent Under Reexamination JENSEN ET AL.
	Examiner MINA HAGHIGHATIAN	Art Unit 1616

CPC- SEARCHED		
Symbol	Date	Examiner

CPC COMBINATION SETS - SEARCHED		
Symbol	Date	Examiner

US CLASSIFICATION SEARCHED			
Class	Subclass	Date	Examiner

SEARCH NOTES		
Search Notes	Date	Examiner
WEST- Text and Inventor names searched	12/28/14	mh
NPL-Text and Inventor names searched	12/28/14	mh
PALM- Inventor names searched	12/28/14	mh
Documents filed by Third Party	12/28/14	mh
IDSs considered	12/28/14	mh

INTERFERENCE SEARCH			
US Class/ CPC Symbol	US Subclass / CPC Group	Date	Examiner

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